

RESPONSIBLE USE OF SOCIAL MEDIA POLICY

Rationale

Social media has become an indispensable part of modern life. Schools use social media as a tool for teaching and learning. However, it has also become a platform to spread fake news; commit cyber libel, cyberbullying, online sexual harassment, or gender-based online sexual harassment; violate the privacy and security of persons, among others. Excessive use and misuse of social media can also affect the mental health, academic performance, and social relationships of persons. To address these issues, the University of Mindanao hereby establishes this Policy to promote the responsible use of social media and prevent the misuse or excessive use of the social media that could harm the interests of the institution and its stakeholders.

Objectives

To promote the responsible use of the social media by providing the guidelines therefor as well as the prohibited acts in the use of the social media.

To provide recourse for victims of prohibited acts enumerated in this Policy and appropriate penalties for offenders.

Scope

This Policy applies to all employees, students and stakeholders of the University.

Definition of Terms

Social media refers to online platforms where users can share information and connect with virtual communities through text, video, photo, and other content (Investopedia).

Fake news is a false and misleading information.

Cyber libel refers to libelous statements made through computer systems or other similar technologies (Section 4 of RA 10175 or the Cybercrime Prevention Act of 2012).

Cyberbullying is the use of digital platforms to harass, threaten, or intimidate a person.

Online sexual harassment is the unwanted sexual advances, comments, and actions made online. This include sharing of explicit content without consent, making lewd comments, or any action that may be deemed sexually offensive.

Gender-based online sexual harassment refers to an online conduct targeted at a particular person that causes or likely to cause another mental, emotional or psychological distress and fear of personal safety, sexual harassment acts including unwanted sexual remarks and comments, threats, uploading or sharing of one's photos without consent, video or audio recordings, cyber stalking and online identity theft (Section 3, [d], RA 11313 or the Safe Spaces Act). This includes persistent, unwanted sexual advances, threats, or messages that focus on a person's gender or sexual orientation.

Personal information refers to any information whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual (Sec. 3, [g] of RA 10173 or the Data Privacy Act of 2012). Sensitive personal information refers to personal information:

- (1) About an individual's race, ethnic origin, marital status, age, color, and religious, philosophical and political affiliations.
- (2) About an individual's health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings.
- (3) Issued by the government agencies peculiar to an individual which includes, but not limited to, social security numbers, previous or current health records, licenses or its denials, suspension or revocation, and tax returns (Sec. 3 [I] of RA 10173).

Guiding Principles

Protection of the University's Name and Reputation

The University's name and reputation should always be protected against fake news, defamatory and malicious posts in the social media.

Protection of Students and Personnel

Protection of students and personnel from fake news, cyber libel, cyberbullying, gender-based online sexual harassment, online sexual harassment, violation of their privacy, and other similar acts through the social media is of utmost importance.

Protection of the Constitutional Right of Freedom of Speech and Expression

No policy shall infringe on a person's constitutional right of freedom of speech and expression.

Use of Social Media in General

Social media may be used to communicate with students, faculty, staff, alumni and parents, to disseminate notifications, to market the University, and as a tool for teaching and learning.

Guideline for the Safe and Ethical Use of Social Media

1. Think before you post – Users are responsible for what they publish. However informal, content published online is shareable and searchable forever; even private posts can be copied and shared.
2. Be secure – Users should use a secure password and update it regularly. Never share login information with anyone.
3. Do not share confidential information – Do not post personal information and sensitive personal information without the consent of the person concerned.

4. Be respectful – Never publish material that is obscene, racist, sexist, pornographic, sexually exploitative, discriminatory, threatening or harassing, personally offensive, defamatory, or illegal.
5. Observe copyright law – Do not post pictures, videos, and other content owned by others without first checking that such sharing is authorized.

Limitations on the Use of Social Media

Posts in social media pages, websites, or profiles must present factual and truthful information. No personal information or sensitive personal information must be disclosed without the consent of the person concerned. Name-calling, insults, or derogatory remarks should be avoided.

The following acts are prohibited in the use of social media:

1. spreading fake news about the University, its students and personnel;
2. cyber libel;
3. cyberbullying;
4. online sexual harassment;
5. gender-based online sexual harassment;
6. internet trolling leading to disinformation;
7. unauthorized disclosure of personal information or sensitive personal information;
8. distribution of prohibited content, especially those that incite hate or cause harm to a person; and
9. other similar acts.

Recourse for Victims and Penalties for Offenders

Victims of any act prohibited under this policy are encouraged to report the incident to school authorities.

Upon receipt of a report of any act prohibited under this policy, the person concerned shall immediately refer the same to the Office of the Human Resource Management Department for cases involving employees, or to the Office of Student Affairs for cases involving students. Likewise, any official, employee, or student who comes into knowledge or information about the possible commission of any act prohibited under this policy shall immediately report the incident to the Office of the HRMD or the Office of Student Affairs, as the case may be.

Commission of any of the prohibited acts enumerated in this policy are considered as offenses subject to disciplinary action. Accordingly, administrative proceedings shall be conducted in accordance with the Code of Conduct and Discipline for employees and the Student Handbook for students.

If found guilty, offenders shall be meted appropriate penalties in accordance with the Code of Conduct and Discipline or the Student Handbook, as the case may be. In addition, counseling shall be provided to both victims and offenders.

Confidentiality of Reports, Proceedings and Decisions

Reports, proceedings, and decisions involving commissions of acts prohibited under this policy shall be treated with strict confidentiality.

Education on the Responsible Use of Social Media

The University shall conduct training sessions and seminars for employees and students to educate them on the ethical use of social media including the applicable laws.

Signed:

(Sgd) GUILLERMO P. TORRES, JR.
University President

Reference

OPM 21.15 – Use of Social Media, Effective January 13, 2020; Rev. 0
Code of Discipline